ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	3rd Commission Meeting
DATE:	17 January 2017
TIME:	9.30 P.M.
VENUE:	Chairperson's Chamber

#	AGENDA	DECISIONS
1.	Follow-ups on 2nd Commission meeting *i) Legal Division's draft report on review of sec. 108 and related sections in ACAB 2011* *ii) Com. Jamtsho's meeting with RMA on INR deposits in Bhutanese banks* *iii) Draft policy on 45% allowance* *iv) TSD's proposal on Septier equipment* v) *Internal Transfer*	i) Legal Division to finalize the report. ii) Com. Jamtsho briefed the Commission on the meeting with RMA. iii) Draft policy on 45% allowance finalized – *Ref. attachment for details.* Commission to consider proposing 45% allowance for all three Departments to the next Pay Commission because of high attrition rate in general and also to facilitate the implementation of job rotation policy. To check if there are any parliament resolutions on allowances specific to ACC. iv) TSD's proposal reviewed by the Commission. v) Transfer of Kin Dorji to TSD deferred – Ref. 1st Commission Meeting held on 6 Jan. 2017.
2.	Complaints shared for actions with agencies	Legal Division to develop Guidelines on Complaints shared for actions with agencies including specifics to RAA (*discuss how money is recovered under four conditions*) and *RCSC (ref. recent RCSC letter).*
3.	Follow-up on SAARC Nations Seminar on Anti-Corruption attended by Chairperson and Kin Dorji	Commission to review the resolution of the Seminar.
4.	ICAC International Seminar on Financial Investigation May 9-10, 2017, ICAC, Hong Kong	Declined the nomination of a member of Commission. To check whether Puran's nomination will affect his mandatory training. Priority must be given to availing the mandatory training.
5.	INTERPOL focal person	Designated Phuntsho Namgay

Commissioner | Commissioner | Chairperson 24/1/17

Incentives for the employees of ACC: 45% Professional Allowance of basic pay
Ref. 3rd Commission Meeting held on 17 January 2017

Policy

In accordance with the Ministry of Finance Notification No. MoF/R-ACC/2010/9844 dated 7 Jan. 2010 and No. MoF/DNB/Rules-2/2014-15/030 dated 18 Jul. 2014, ACC staff are entitled to:

A. 45% of basic pay for professional investigators and related professionals; and

B. 20% of basic pay for other employees except for Chairperson and Commission Members.

Eligibility criteria

1. Professional Allowance of 45% of basic pay shall be paid based on the Terms of Reference of respective Departments/Divisions/Services as per the revised organizational structure.

   It shall not be based on job descriptions of individuals and shall depend on the placement of staff in respective Departments/Divisions/Services.

   Accordingly:

   i) All staff of the Dept. of Investigation, Dept. of Professional Support, Technical Support Division and Legal Division are entitled to Professional Allowance of 45% of basic pay; and

   ii) Rest of the staff in other Departments/Divisions/Services are entitled to Professional Allowance of 20% of basic pay except Commission Members.

2. If ACC staff (including drivers) with allowance of 20% are assigned the functions of Departments/Divisions/Services with 45% allowance for a minimum of one month, they shall be entitled to 45% allowance. However, as a policy matter, they shall not be pulled in to carry out such works. In case when necessitated under exigent circumstances, it shall be done so with office order.

3. Similarly, if ACC staff with allowance of 45% are assigned the functions of Departments/Divisions/Services with 20% allowance for more than a month, they shall not be entitled to 45% allowance. However, it shall not be applicable to those staff who are pulled in for time bound project or assignment.

4. In accordance with Section 11.6 of BCSR 2012, Professional Allowance shall be withdrawn on availing leave as specified below:

   i) Maternity leave;
   ii) Study leave exceeding one month (also specified under section 9.4.4.3);
   iii) Medical leave exceeding one month; and
   iv) Extraordinary leave.

Recommendation to the next Pay Commission: To propose Professional Allowance of 45% of basic pay for all staff of the Dept. of Investigation, Dept. of Prevention and Education, Dept. of Professional Support, Technical Support Division and Legal Division.

